HDRWA PLATFORM DATA USE AGREEMENT

BACKGROUND:

(A) The Health Data Research West Africa (HDRWA) has developed a collaborative data repository to enable the generation of new scientific evidence through sharing of various clinical research data of health importance including Tuberculosis, HIV, Malaria, Re-emerging infections as well as noncommunicable diseases (NCDs). HDRWA aims to aggregate, curate, share and link different datasets for meta-analyses to enable discoveries and improve human health.

(B) HDRWA's data platform is based at the Medical Research Council Unit The Gambia at the London School of Hygiene and Tropical Medicine (MRCG at MRCG AT LSHTM) where the Platform is hosted. MRCG AT LSHTM is responsible for HDRWA's obligations set out in this Agreement. For the purposes of this Agreement HDRWA means "MRCG AT LSHTM" to the exclusion of any other legal person.

(C) The Data Access Committee or "**DAC**" is an independent group of experts appointed to review and make decisions regarding applications for access to data stored on the Platform by researchers and institutions. DAC membership, Terms of reference and decisions are available at https://www.hdrwa.org.

(D) The Recipient wishes to access the Dataset for the purposes set out in the Application, which has been approved by the DAC. The Parties have agreed to enter into this Agreement which sets out the terms on which the Recipient may use the Dataset.

THIS AGREEMENT is effective as of the date of last signature ("Effective Date")

BETWEEN:

(1) **THE UNIT DIRECTOR, MRCG AT LSHTM** whose administrative office is at Atlantic Road, Fajara, The Gambia on behalf of HDRWA

(2) **THE RECIPIENT INSTITUTION** named on the signature page of this document (the "**Recipient"**), (each a "**Party**" and together the "**Parties**").

FOR THE TRANSFER OF THE DATASET TO CONDUCT THE RESEARCH OUTLINED IN SCHEDULE 2.

NOW IT IS AGREED as follows:

1. DEFINITIONS

In this Agreement:

"**Applicable Regulations**" means all laws, regulations, regulatory requirements and authorisations, decisions and guidance of regulatory authorities or other requirements applicable in the context of this Agreement;

"**Application**" means the application submitted by the Recipient to access the Dataset as may be amended from time to time, a current copy of which is appended to Schedule 2;

"**Background IP**" means all Intellectual Property Rights held by a Party prior to receiving access to the Dataset;

"**Confidential Information**" means the Dataset and any and all information disclosed by or on behalf of HDRWA at any time that would be regarded as confidential by a reasonable person or information which is identified as being confidential or otherwise designated to show expressly that it is imparted in confidence;

"**Data Contributors**" means the person(s) or institution(s) that provided the Dataset(s) as set out in Schedule 1;

"**Data Recipients**" or "**Recipients**" means the person(s) that are requesting the Dataset(s) as set out in Schedule 2;

"Dataset" means the data as may be amended from time to time, more particularly described in the version of Schedule 1 appended to this agreement. The Dataset is pseudonymised, meaning that individual-level data relating to a natural person within the Dataset is no longer identifiable from those data by virtue of omission, obfuscation or replacement with a safeguarded, non-identifiable code.

"**Derived Data**" means any data derived from use or analysis of the Dataset in the course of the Research and any collections of data, datasets and databases housing the foregoing and any database rights in or relating thereto;

"**HDRWA Data Platform" or** "**Platform**" means the platform developed and hosted at MRCG at LSHTM on which data are contributed by a variety of Data Contributors (including those listed in Schedule 1) are collated and curated;

"**Digital Object Identifier**" or "**DOI**" means a persistent identifier used to identify objects uniquely. In the context of the Platform, DOIs may be assigned to some or all of the Dataset(s) as set out in Schedule 1;

"**Enriched Data**" means any new or additional data that is collected by the Recipient for the purpose of the Research and which incorporates the Dataset (or any part thereof) and any collections of data, datasets and databases housing the foregoing and any database rights in or relating thereto;

"**Intellectual Property Rights**" means any and all patents, copyright, registered designs, design rights, trade marks, database rights, regulatory rights in data exclusivity and market exclusivity (including under Directive 2001/83/EC and any national implementing legislation), know-how and any other intellectual property rights anywhere in the world in each case whether registered or unregistered, including any and all applications for such rights and the right to make such applications and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world;

"Publication" means any abstracts, reports, external communication, websites, presentations or peer-reviewed scientific publications that contain information, data or Research Results that are directly or indirectly related to the Dataset(s) and "**Publish**" shall be construed accordingly;

"**Research**" means the research to be performed by the Recipient as described in the Application;

"**Research Results**" means the results of the research performed by Data Recipients using the Data, including all Publications, Intellectual Property Rights, Derived Data and Enriched Data that are generated, or otherwise collected, arising, identified or first reduced to practice, in the course of research (but excluding the Data);

"**Research Team**" means the principal researcher and the individuals directly involved in the performance of the Research who are named on the Application;

"**Schedule**" means a schedule to this Agreement;

"**Term**" means two years after the execution of the DUA

"**Third Party**" means any entity or person other than the Parties.

2. DATA TRANSFER

2.1 MRCG at LSHTM shall provide the Dataset to the Recipient following execution of this Agreement by both Parties.

2.2 The Recipient has the right to use the Dataset solely for the purposes of the Research which shall be conducted by the Research Team. Subject to Clause 3.3.2, the Recipient is permitted to share the Dataset with other members of the Research Team solely for the purposes of the Research, including Research Team members who are not employees or students of the Recipient. Any subsequent analysis requires a new application.

2.3 Subject to Clause 2.2, the Recipient will not transfer the Dataset or otherwise make it available to any Third Party.

2.4 Nothing in this Agreement shall prevent the MRCG at LSHTM or the Data Contributors from being able to use the Dataset for any purpose, including but not limited to distribution of the Dataset to Third Parties for research purposes.

2.5 The Recipient acknowledges that it shall have no rights in or to the Dataset other than the right to use it in accordance with the express terms of this Agreement.

2.6 The Parties agree that following approval by the DAC, the Schedules to this Agreement can be updated and the most recent version of these Schedules appended to this Agreement as relevant without the need for a signed amendment to this Agreement.

3. RECIPIENT OBLIGATIONS

3.1 The Recipient acknowledges that the Dataset is pseudonymised and that the intention is that the MRCG at LSHTM shall not transfer, disclose or otherwise make available any personal data (as defined in the GDPR) to the Recipient. Notwithstanding, the Recipient shall immediately notify the MRCG at LSHTM if it becomes aware that the Dataset may or does contain personal data and shall follow the reasonable instructions issued by the MRCG at LSHTM.

3.2 The Recipient shall not:

3.2.1 use the Dataset for any purpose other than the Research, for example the Dataset may not be used for the development and/or regulatory approval of medical or clinical products, diagnostics or for commercial or for-profit purposes unless expressly included in the Data Access Application Form and subsequently approved through the application process for Data access.

3.2.2 use, attempt to use or permit use of the Dataset to re-identify or contact any individual (living or deceased), community or medical institution associated with the Dataset; or

3.2.3 Link, attempt to link or permit a Third Party to link the Dataset with any other data in a manner that may enable re-identification of individuals (living or deceased), communities or medical institutions associated with the Dataset; or

3.2.4 during the period of this Agreement or thereafter, disclose to any persons other than the Research Team any Confidential Information except as expressly permitted by the terms of this Agreement.

3.3 The Recipient shall:

3.3.1 ensure that each member of the Research Team who is employed by or a student at the Recipient institution will use the Dataset solely for the purposes of the Research and that each such member of the Research Team is bound to comply in full with the terms of this Agreement and any subsequent amendments, including undertakings of confidentiality equivalent to those set forth in this clause; and

3.3.2 in relation to any member of the Research Team who is employed by or a student at a Third Party, put in place a written agreement with such Third Party(s) to ensure the member of the Research Team will use the Dataset solely for the purposes of the Research and that the member of the Research Team is bound to comply in full with the terms of this Agreement and any subsequent amendments, including undertakings of confidentiality equivalent to those set forth in this clause; and

3.3.3 take all practicable steps whilst such information is in its possession or control to prevent access thereto by any person not so entitled under this Agreement; and

3.3.4 in relation to use of the Dataset allow for and contribute to audits, including inspections, conducted by or on behalf of HDRWA and/or the Data Contributor, on reasonable notice and subject to appropriate confidentiality obligations.

3.4 The Recipient shall always be responsible for the Research Team's compliance with the obligations set out in this Agreement, including any Research Team members who are employed by or students at a Third Party.

3.5 During the Term the Recipient shall:

3.5.1 contact the Data Contributor(s) named in Schedule 1 and invite its/their participation in the planning and execution and/or publication of the Research. The Recipient may proceed

without the participation of the Data Contributor if no response is received within 1 month of invitation. The structure of participation can be decided between the Recipient and each Data Contributor;

3.5.2 ensure that at all times it holds and maintains all necessary licences, permits and/or consents necessary for it to perform the Research;

3.5.3 ensure that any regulatory and/or ethics committee approvals required for use of the Dataset in the Research are obtained before the Dataset is used;

3.5.4 ensure that the Dataset is used in compliance with all Applicable Regulations, including without limitation, the GDPR and international best practices, standards and guidance, in particular relevant documents published by the World Health Organization (https://www.who.int/activities/ensuring-ethicalstandardsand-procedures-for-research-with-human-beings);

3.5.5 observe the highest standards of ethics and integrity in the course of the Research in order to promote respect for human rights, human dignity and privacy.

3.5.6 comply with any instructions or restrictions with respect to use of the Dataset that the MRCG at LSHTM may notify to the Recipient from time to time.

3.5.7 notify the MRCG at LSHTM if it anticipates any changes to the Research and shall not implement any such change without obtaining prior written approval from the DAC; and

3.5.8 implement appropriate security measures to protect the Dataset from unauthorised access and/or disclosure. The Recipient shall store the Dataset only on encrypted, access-limited, password-protected computers and/or servers. Any duplication of the Dataset must be fully documented such that all versions can be fully and permanently deleted on completion of the Term or earlier termination of this Agreement.

3.6 The Recipient warrants and undertakes to the MRCG at LSHTM that it has the right to enter into this Agreement.

3.7 The Recipient shall notify the MRCG at LSHTM as quickly as possible upon becoming aware of any unauthorised use or disclosure of, or access to, the Confidential Information and/or Dataset and the Recipient shall promptly take such action to remediate the same as HDRWA and/or the DAC may reasonably require.

4. REPORTING AND INTELLECTUAL PROPERTY

4.1 The Recipient will inform MRCG at LSHTM of all Research Results produced within 1 month prior to publication or completion.

4.2 All Background IP is and shall remain the exclusive property of the Party owning it (or, where applicable, the Third Party from whom its right to use the Background IP has derived) and nothing in this Agreement shall operate to transfer any Background IP of one Party to the other.

4.3 The Recipient grants the MRCG at LSHTM a licence (which is irrevocable, perpetual, transferable, nonexclusive, sub-licensable and royalty free) to use and make available the Research Results for research, humanitarian, education, public health emergency response and other non-commercial purposes.

4.4 The Recipient shall use diligent efforts to make sure that the Research Results are accessible and available including taking steps to disseminate the Research Results in countries where data in the Dataset were collected.

4.5 The Recipient agrees that it will not enter any dealing whatsoever with any other person which conflicts with this Agreement. In particular, the Recipient shall:

4.5.1 not enforce any Intellectual Property Rights it may own with respect to the Research Results against any person without the MRCG at LSHTM's prior written consent;

4.5.2 not draft or file any applications to obtain patent protection (or other similar or equivalent protection) with respect to the Research Results in any jurisdiction without the MRCG at LSHTM's prior written consent; and

4.5.3 procure that all persons to whom the Recipient licenses the Research Results enter into a binding written agreement with the Recipient under which it agrees to comply with terms materially equivalent to those set out in this Clause.

4.6 The Recipient acknowledges that the MRCG at LSHTM may reproduce the contents of approved applications and the Research Results on their websites or other media with due attribution to the Recipient.

5. PUBLICATION

5.1 The Recipient shall Publish or submit for Publication to an open-access, peer-reviewed journal, the Research Results (irrespective of the outcome of the Research) during the Term or such other period agreed between the Parties.

5.2 The Recipient shall ensure that Publications do not contain any information capable of identifying any individual (living or deceased) associated with the Dataset.

5.3 The Recipient shall take action to prevent discrimination, stigma or harm to any community identified in the Research Results.

5.4 Any Publication or presentation concerning the Dataset or the Research Results shall include citation of all digital object identifiers (DOIs) included in Schedule 1 and the following acknowledgement: "*This research includes data obtained through a request to the Health Data Research West Africa (HDRWA) platform https://www.HDRWA.org. HDRWA had no role in the production of this research*". NOTE: Omit the last sentence if HDRWA staff collaborate in the analysis and publication.

5.5 All Third Parties approved by the Data Access Committee to access Curated Data will be required as part of the terms of the Data Access Committee approval to invite the Contributor(s) to participate in the Proposed Research. The Contributor shall have the right but not the obligation to participate in the Proposed Research. For the avoidance of doubt, the Curated Data will be shared with the third party for the approved Proposed Research even if the Contributor declines to participate in the Proposed Research. The purpose of these requirements is to inform and include the Contributor in all use of Curated Data, insofar as the Contributor wishes to be.

6. LIMITATIONS AND EXCLUSIONS

6.1 Nothing in this Agreement excludes or limits the liability of either Party:

6.1.1 for death or personal injury caused by that Party's negligence; or

6.1.2 for fraud or fraudulent misrepresentation; or

6.1.3 to the extent that such liability cannot be limited or excluded by law.

6.2 Subject to Clause 6.1, in no event will the MRCG at LSHTM or the Data Contributor(s) be liable for any use of the Dataset by the Recipient, whether in contract, tort (including negligence or breach of statutory duty) or otherwise howsoever arising.

6.3 The Recipient acknowledges that the Dataset is provided "as is" and the MRCG at LSHTM provides the Dataset without any representation or warranty of any kind.

6.4 Subject to Clauses 6.1, 6.2 and 6.3 and insofar as any liability may not be limited or excluded by law, the total liability of the MRCG at LSHTM, whether in contract, delict or otherwise, arising in connection with this Agreement shall not exceed ten thousand pounds sterling (£10,000) in aggregate.

7. DURATION AND TERMINATION

7.1 This Agreement, and the licences granted hereunder, shall commence on the later date of signature of the two Parties and, unless terminated earlier in accordance with this Clause, shall continue in force for the Term (as defined in the definitions).

7.2 The Recipient or the MRCG at LSHTM may terminate this Agreement at any time by notice in writing to the other Party, such notice to take effect as specified in the notice.

7.3 Without prejudice to any other rights or remedies which the MRCG at LSHTM may have, if the MRCG at LSHTM reasonably considers that the Recipient is in breach of any of its obligations under this Agreement:

7.3.1 The MRCG at LSHTM shall notify the Recipient and the Recipient shall not publish the Research Results or, to the extent already published, procure the withdrawal of the Research Results from all such publications; and

7.3.2 The MRCG at LSHTM may terminate this Agreement forthwith by notice in writing to the Recipient

7.3.3 The MRCG at LSHTM retains the right to contact the relevant journals if the Recipient does not withdraw any published Research Results in accordance with clause 7.3.1

7.4 Upon expiry or termination of this Agreement, all licences granted to Recipient pursuant to this Agreement will automatically terminate and the Recipient shall securely destroy the Dataset and all Confidential Information and all Enriched Data to the extent that they incorporate the Dataset (and all

copies thereof) in its possession or control and shall certify in writing to the MRCG at LSHTM that it has done so.

7.5 The termination or expiry of this Agreement shall not prejudice or affect any accrued rights or liabilities of any of the Parties.

7.6 Upon termination of this Agreement for any reason the provisions of Clauses 1 (*Definitions*), 2.3 to 2.5 (inclusive) (*No transfer and reservation of rights*), 3.1 to 3.3 (inclusive), 3.6 and 3.7 (*Recipient Obligations*), 4 (*Reporting and Intellectual Property*), 5 (*Publication*), 5.5 (*Limitations and Exclusions*), 7 (*Duration and Termination*), 8 (*General*), 9 (*Notices*), and 10 (*Governing Law*) shall remain in force.

8. GENERAL

8.1 This Agreement may only be amended in writing signed by duly authorised representatives of the MRCG at LSHTM and the Recipient.

8.2 The Recipient shall not assign, mortgage, charge or otherwise transfer or deal with any rights or obligations under this Agreement without the prior written consent of the MRCG at LSHTM.

8.3 No failure or delay on the part of either Party to exercise any right or remedy under this Agreement shall be construed or operate as a waiver thereof, nor shall any single or partial exercise of any right or remedy preclude the further exercise of such right or remedy.

8.4 If any provision or part of this Agreement is held to be invalid, amendments to this Agreement may be made by the addition or deletion of wording as appropriate to remove the invalid part or provision but otherwise retain the provision and the other provisions of this Agreement to the maximum extent permissible under applicable law.

8.5 Neither Party shall act or describe itself as the agent of the other, nor shall it make or represent that it has authority to make any commitments on the other's behalf.

8.6 Each Party shall at all times comply with all applicable laws, statutes, regulations and codes relating to antibribery and corruption and shall have and maintain appropriate policies and procedures to ensure compliance with such requirements (which it shall enforce where appropriate). Each Party shall immediately notify the other Party of any demand for any undue financial or other advantage of any kind received by it in connection with the subject matter of this Agreement.

8.7 This Agreement, including its schedules, sets out the entire agreement between the Parties relating to its subject matter and supersedes all prior oral or written agreements, arrangements, or understandings between them relating to such subject matter. The Parties acknowledge that they are not relying on any representation, agreement, term or condition which is not set out in this Agreement.

9. NOTICES

9.1 All notices to be given and other documentation to be sent under the terms of this Agreement may be delivered personally or via email to the following:

9.1.1 in the case of HDRWA: info@hdrwa.org

9.1.2 in the case of the Recipient: the email specified on the signature page of this document

9.2 Notices sent as above shall be deemed to have been received: if delivered personally, when left at the address noted at the start of this Agreement (or such other address as may be notified to the other party in writing from time to time); or if sent by email, on the date the confirmation copy was deemed to have been received.

10. GOVERNING LAW

The validity, construction and performance of this Agreement, and any contractual and non-contractual claims arising hereunder, shall be governed by English law and shall be subject to the exclusive jurisdiction of the English courts to which the Parties hereby submit.

EXECUTED

For and on behalf of

THE UNIT DIRECTOR, THE MRCG AT LSHTM

Signed: _____

Print name: _____

Title: _____

Date: _____

For and on behalf of

[FULL NAME OF RECIPIENT INSTITUTION]

Signed: _____

Print name: _____

Title: _____

Date: _____

Acknowledged by

[NAME OF PRINCIPAL RESEARCHER]

Signed: _____

Print name: _____

Title: _____

Date: _____

Email address of Recipient for the purpose of Notices: _____

SCHEDULE 1 DATASET RELEASE COVER PAGE

(This page will be completed by HDRWA)

Dataset Release Version: XXX

X files are included in this release (insert file names):

1. XXX
2. XXX

HDRWA Submission ID References and corresponding DOI are included in this release:

HDRWA Submission ID	DOI (if known)

This file is the data dictionary to accompany the dataset: XXX (or link)

The organisation(s) or individual(s) listed below contributed the data in this dataset to the HDRWA Data Platform. All contributors must be acknowledged or, if appropriate, included in the authorship in any Publication(s). The organisations whose contact information has been provided must be invited to participate in the Research:

Institution Name	Contact Name	Contact Email

Please ensure that any Publication or presentation concerning the Dataset or the Research Results shall include citation of the digital object identifiers (DOIs) listed above (if any) and the following acknowledgement:

"*This research includes data obtained through a request to the Health Data Research West Africa (HDRWA) https://www.hdrwa.org/access-data. HDRWA had no role in the production of this research*". NOTE: Omit the last sentence if HDRWA staff collaborate in the analysis and publication.

If you have questions about this dataset, please contact info@hdrwa.org

SCHEDULE 2 DAC APPROVED DATA ACCESS APPLICATION